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TENTATIVE RULING

HEARING DATE: 07/14/2026

CASE NUMBER: 26STCV01017

CASE NAME: TASHA SHARRONE BETHEA vs
DLGP INDEPENDENCE LLC, A CA...

MOVING PARTY: Defendants DLGP Independence
LLC; INDEP-JW, LLC; INDEP-PK, LLC; and Davlyn Investments, Inc.

OPPOSING PARTY: Plaintiff Sharrone Bethea

PROCEEDING: Motion to Compel arbitration

RULING SUMMARY: Defendants' Motion to
Compel Arbitration is denied.

Background

On

January 12, 2026, Plaintiff Tasha Sharrone Bethea ("Plaintiff") filed her Complaint against Defendants DLGP Independence LLC ("DLGP"); INDEP-JW, LLC ("INDEP-JW"); INDEP-PK, LLC ("INDEP-PK"); and Davlyn Investments, Inc. ("Davlyn" and, with other defendants, "Defendants"), alleging 13 causes of action for: (1) Statutory Breach of the Implied Warranty of Habitability (Civ. Code §§ 1941, 1941.1, and 1942.4); (2) Tortious Breach of the Implied Warranty

of Habitability; (3) Breach of the Covenant of Quiet Enjoyment; (4) Breach of Contract; (5) Negligence; (6) Negligent Hiring, Training, and Supervision; (7) Private Nuisance; (8) Intentional Infliction of Emotional Distress ("IIED"); (9) Tenant Harassment in Violation of Los Angeles Municipal Code ("LAMC") § 45.33; (10) Tenant Harassment in Violation of Los Angeles County Code ("LACC") Chapter 8.52.130(B); and (11) Unfair Competition (Bus. & Prof. Code § 17200, et seq.).

Plaintiff

alleges that she is the tenant located at the real property known as 8735 Independence Avenue, Canoga Park, CA 91304 (the "Subject Property") in Unit 96 and, during her tenancy, Defendants violated provisions of the Civil Code, Business and Professions Code, Health and Safety Code, Los Angeles County Public Health Code, Los Angeles County Code of Ordinance, Los Angeles Municipal Code, and other relevant laws, rules, orders, requirements and regulations by failing to abate uninhabitable conditions, such as a cockroach infestation, at the Subject Property.

On

February 26, 2026, Defendants filed their Answer.

On

March 30, 2026, Defendants filed this Motion to Compel Arbitration. On June 30, 2026, Plaintiff filed her Opposition. Plaintiff's Reply was filed on July 7, 2026.

LEGAL STANDARD

California law incorporates many of the basic policy objectives contained in the Federal Arbitration Act ("FAA"), including a presumption in favor of arbitrability. (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 971-72.) Code of Civil Procedure section 1281.2 authorizes a party to file a motion to request that the Court order the parties to arbitrate a controversy. Under section 1281.2, the Court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that:

(a) The right to compel arbitration has been waived by the petitioner; or

(b) Grounds exist for the revocation of the agreement.

(c) A party to the arbitration agreement is also a party to a pending court action or special proceeding with a third party, arising out of the same transaction or series of related transactions and there is a possibility of conflicting rulings on a common issue of law or fact. For purposes of this section, a pending court action or special proceeding includes an action or proceeding initiated by the party refusing to arbitrate after the petition to compel arbitration has been filed, but on or before the date of the hearing on the petition. This subdivision shall not be applicable to an agreement to arbitrate disputes as to the professional negligence of a health care provider made pursuant to Section 1295.

(Code Civ. Proc. § 1281.2.)

Doubts as to whether an arbitration clause applies to a particular dispute are to be resolved in favor of sending the parties to arbitration. (Id.) The Court should order them to arbitrate unless it is clear that the arbitration clause cannot be interpreted to cover the dispute. (Id.; Code Civ. Proc. § 1281.2 [". . . unless it determines that: (a) The right to compel arbitration has been waived by the petitioner; or (b) Grounds exist for the revocation of the agreement"].) Unless the parties clearly and unmistakably provide otherwise, the question of whether the parties agreed to arbitrate is to be decided by the court, not the arbitrator. (Id.)

The right to arbitration depends upon contract; a petition to compel arbitration is simply a suit in equity seeking specific performance of that contract. (Id.) There is no public policy favoring arbitration of disputes which the parties have not agreed to arbitrate. (Id.)

The party seeking to enforce the arbitration agreement bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence. (Giuliano v. Inland Empire Personnel, Inc. (2007) 149 Cal.App.4th 1276, 1284.) The trial court first decides whether an enforceable arbitration agreement exists between the parties and then determine whether the plaintiff's claims are covered by the agreement. (Omar v. Ralphs Grocery Co. (2004) 118 Cal.App.4th 955, 961.)

The party opposing the petition to compel arbitration bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. (Giuliano v. Inland Empire Personnel, Inc., *supra*, at 1284.) In these summary proceedings, the trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court's discretion, to reach a final determination. (Id.)

DISCUSSION

A. Defendants

have shown the existence of an arbitration agreement.

Under both the Federal Arbitration Act ("FAA") and California law, arbitration agreements are valid, irrevocable, and enforceable, except on such grounds that exist at law or equity for voiding a contract. (Winter v. Window Fashions Professions, Inc. (2008) 166 Cal.App.4th 943, 947.) The party moving to compel arbitration must establish the existence of a written arbitration agreement between the parties. (Code Civ. Proc. § 1281.2.) In ruling on a motion to compel arbitration, the court must first determine whether the parties actually agreed to arbitrate the dispute, and general principles of California contract law help guide the court in making this determination. (Mendez v. Mid-Wilshire Health Care Center (2013) 220 Cal.App.4th 534, 541.)

Once petitioners show that an arbitration agreement exists, the burden shifts to respondents to prove the unenforceability of the purported agreement, and no evidence or authentication is required to find the arbitration agreement exists. (See Condee v. Longwood Mgt. Corp. (2001) 88 Cal.App.4th 215, 219.) However, if the existence of the agreement is challenged, "petitioner bears the burden of proving [the arbitration agreement's] existence by a preponderance of the evidence." (Rosenthal v. Great Western Fin. Securities Corp. (1996) 14 Cal.4th 394, 413. See also Espejo v. Southern California Permanente Medical Group (2016) 246 Cal.App.4th 1047, 1058-1060.)

"With respect to the moving party's burden to provide evidence of the existence of an agreement to arbitrate, it is generally sufficient for that party to present a copy of the contract to the court. (See Condee, *supra*, 88 Cal.App.4th 215, 218; see also Cal.

Rules of Court, Rule 3.1330 ["A petition to compel arbitration or to stay proceedings pursuant to Code of Civil Procedure sections 1281.2 and 1281.4 must state, in addition to other required allegations, the provisions of the written agreement and the paragraph that provides for arbitration. The provisions must be stated verbatim or a copy must be physically or electronically attached to the petition and incorporated by reference"].) Once such a document is presented to the court, the burden shifts to the party opposing the motion to compel, who may present any challenges to the enforcement of the agreement and evidence in support of those challenges. [Citation]" (Baker v. Italian Maple Holdings, LLC (2017) 13 Cal.App.5th 1152, 1160.)

Here, Defendants present that a valid written arbitration agreement exists as Plaintiff signed a residential lease agreement and also signed a separate arbitration agreement addendum on or about August 14, 2024. The arbitration agreement reads, in relevant part:

LEASE ADDENDUM

ARBITRATION

PROVISION FOR
BINDING ARBITRATION PURSUANT TO CIVIL CODE SECTION 1942.1

PURSUANT TO
THE PROVISIONS OF CALIFORNIA CIVIL CODE SECTION 1942.1, THE PARTIES TO THIS LEASE AGREE THAT ANY CLAIM OR CONTROVERSY ARISING OUT OF OR RELATING TO A CONDITION OF THE PREMISES CLAIMED TO MAKE THEM UNTENANTABLE, INCLUDING, BUT NOT LIMITED TO, THE ISSUE OF ARBITRABILITY, PERSONAL INJURY AND PROPERTY DAMAGE CLAIMS; CLAIMS BASED UPON ANY FEDERAL STATE OR LOCAL STATUTE, ORDINANCE OR REGULATION; AND TORT AND CONTRACT THEORIES FOUNDED IN THE ISSUE OF HABITABILITY ARISING OUT OF THE LEASE, SHALL BE RESOLVED SOLELY BY BINDING ARBITRATION ADMINISTERED BY THE JUDICIAL ARBITRATION AND MEDIATION SERVICE ("JAMS") IN ACCORDANCE WITH THE PROVISIONS OF TITLE 9 (COMMENCING WITH SECTION 1280), PART 3 OF THE CODE OF CIVIL PROCEDURE. ANY SUCH ARBITRATION SHALL BE HELD AND CONDUCTED IN THE CITY IN WHICH THE PREMISES ARE LOCATED BEFORE A SINGLE ARBITRATOR WHO SHALL BE SELECTED BY MUTUAL AGREEMENT OF THE PARTIES. THE ARBITRATOR SHALL BE A RETIRED JUDGE OR JUSTICE, OR AN ATTORNEY WITH AT LEAST FIVE (5) YEARS OF RESIDENTIAL LANDLORD TENANT LAW EXPERIENCE, WHO SHALL RENDER AN AWARD IN ACCORDANCE WITH SUBSTANTIVE CALIFORNIA LAW. IF AGREEMENT IS NOT REACHED ON THE SELECTION OF THE ARBITRATORS WITHIN 15 DAYS,

THEN SUCH ARBITRATORS SHALL BE APPOINTED BY THE PRESIDING JUDGE OF THE SUPERIOR COURT OF THE COUNTY IN WHICH THE ARBITRATION IS TO BE CONDUCTED. THE PROVISIONS OF JAMS RULES SHALL GOVERN SUCH ARBITRATION, SUBJECT, HOWEVER, TO THE FOLLOWING: (A) ANY DEMAND FOR ARBITRATION SHALL BE IN WRITING AND MUST BE MADE WITHIN ONE YEAR AFTER THE CLAIM, DISPUTE, OR OTHER MATTER IN QUESTION HAS ARISEN; PROVIDED THAT IN NO EVENT SHALL THE DEMAND FOR ARBITRATION BE MADE AFTER THE DATE THAT INSTITUTION OF LEGAL OR EQUITABLE PROCEEDINGS BASED ON SUCH A MATTER WOULD BE BARRED BY THE APPLICABLE STATUTE OF LIMITATIONS; (B) THE PARTIES SHALL HAVE THE RIGHT OF DISCOVERY IN ACCORDANCE WITH CCP §1283.05; (C) THE ARBITRATORS' JURISDICTION EXTENDS TO ALL PUNITIVE DAMAGE CLAIMS AND CLASS ACTIONS; (D) EACH PARTY TO BEAR THEIR OWN RESPECTIVE FEES AND COSTS RELATIVE TO THE ARBITRATION PROCESS, UNLESS THE ARBITRATOR AWARDS FEES AND COSTS TO THE PREVAILING PARTY IN ACCORDANCE WITH CALIFORNIA CIVIL CODE SECTION 1717; (E) ALL ADMINISTRATIVE FEES AND COSTS, INCLUDING, BUT NOT LIMITED TO, THE ARBITRATORS' FEES RELATIVE TO THE ARBITRATION PROCESS SHALL BE BORNE EQUALLY BY BOTH LESSOR AND LESSEE UNLESS OTHERWISE APPORTIONED BY THE ARBITRATOR; AND (F) THE DECISION OF THE ARBITRATORS SHALL BE FINAL AND JUDGMENT MAY BE ENTERED ON IT IN ACCORDANCE WITH APPLICABLE LAW. THE PARTIES HAVE READ AND UNDERSTAND THE PROVISIONS OF CALIFORNIA CIVIL CODE SECTIONS 1941 TO 1942.1, WHICH PROVIDE AS FOLLOWS:

[. . .]

§ 1942.1 -

Waiver of Rights; Public Policy; Arbitration of Untenantability

Any agreement

by a lessee of a dwelling waiving or modifying his rights under Section 1941 or Section 1942 shall be void as contrary to public policy with respect to any condition which renders the premises untenable, except that the lessor and the lessee may agree that the lessee shall undertake to improve, repair or maintain all or stipulated portions of the dwelling as part of the consideration for rental. The lessor and lessee may, if an agreement is in writing, set forth the provisions of Section 1941 to Section 1942.1, inclusive, and provide that any controversy relating to a condition of the premises claimed to make them untenable may by application of either party be submitted to arbitration, pursuant to the provisions of Title 9 (commencing with Section 1280), Part 3 of the Code of Civil Procedure and that the costs of such arbitration shall be apportioned by the arbitrator between the parties. Nothing in the Addendum shall be deemed to limit the Landlord's rights in the event of

Resident's breach or default under this agreement, including, without limitation, Landlord's right to bring an action for Unlawful Detainer under the laws of the State of California.

NOTICE: BY

INITIALING IN THE SPACE BELOW YOU ARE AGREEING TO HAVE ANY DISPUTE ARISING OUT OF THE MATTERS INCLUDED IN THE ARBITRATION AND DISPUTES PROVISION DECIDED BY NEUTRAL ARBITRATION AS PROVIDED BY CALIFORNIA LAW AND YOU ARE GIVING UP ANY RIGHTS YOU MIGHT POSSESS TO HAVE THE DISPUTE LITIGATED IN A COURT OR JURY TRIAL. BY INITIALING IN THE SPACE BELOW YOU ARE GIVING UP YOUR JUDICIAL RIGHTS TO DISCOVERY AND APPEAL, UNLESS THOSE RIGHTS ARE SPECIFICALLY INCLUDED IN THE ARBITRATION OF DISPUTES PROVISION. IF YOU REFUSE TO SUBMIT TO ARBITRATION AFTER AGREEING TO THIS PROVISION, YOU MAY BE COMPELLED TO ARBITRATE UNDER THE AUTHORITY OF THE CALIFORNIA CODE OF CIVIL PROCEDURE. YOUR AGREEMENT TO THIS ARBITRATION PROVISION IS VOLUNTARY. THE UNDERSIGNED HAVE READ AND UNDERSTAND THE FOREGOING AND AGREE TO SUBMIT DISPUTES ARISING OUT OF THE MATTERS INCLUDED IN THE ARBITRATION OF DISPUTES PROVISION TO NEUTRAL ARBITRATION.

(Decl. Karina Rodriguez at ¶ 12,
Exh. 1.)

As presented, Plaintiff's
signature is dated August 14, 2024 at 5:23 p.m. PDT. (See *ibid.*)

Accordingly,
Defendants have met their initial burden to show that an arbitration agreement between the parties exists and the burden shifts to Plaintiff.

B.
Plaintiff's
signature argument fails due to mutual consent.

Plaintiff
argues that the arbitration agreement is not enforceable as no defendant signed the arbitration provision. (See Opp. 13:14-23.)

"When
the burden has shifted to the party opposing arbitration, that party must 'identify a factual dispute as to the agreement's existence' and must present admissible evidence to support the existence of that factual dispute. [Citations.]" (Ramirez

v. Golden Queen Mining Co., LLC (2024) 102 Cal.App.5th 821, 832-33.)

Plaintiff's

argument goes against the declaration of Karina Rodriguez, who affirmatively states that she signed the agreement. (Rodriguez Decl. ¶ 9; Complaint at Exh. 1 at p.12.) Rodriguez's signature is on page 12, while the arbitration agreement is located on page 16.

Addressing

page 16 alone, the presence or absence of a signature on a written arbitration agreement is not dispositive of its existence or validity. (See Juen v. Alain Pinel Realtors, Inc. (2019) 32 Cal.App.5th 972, 978.) Plaintiff does not dispute that she signed the agreement. The question for the Court regarding this argument is whether the essential element of mutual consent to the agreement under general principles of California contract law exists. (See Mar v. Perkins (2024) 102 Cal.App.5th 201, 212-213.) Mutual assent usually is manifested by an offer communicated to the offeree and an acceptance communicated to the offeror. (Id. at 212.) As presented by the evidence, mutual consent occurred as Plaintiff signed the agreement and Plaintiff was allowed tenancy by Defendants. (See Complaint at ¶¶ 1, 6.)

C. The arbitration agreement is
subject to the CAA.

As a threshold matter, the Court must determine which body of law – the FAA or the California Arbitration Act (Code Civ. Proc., § 1280 et seq.) ("CAA") – applies to the issues presented here as the two statutory schemes apply different standards and presumptions. The FAA embodies a strong federal policy favoring arbitration. To assure uniform results as to arbitrability of disputes subject to the FAA, conflicting state law is preempted under the Supremacy Clause: "Federal law in the terms of the Arbitration Act governs . . . [arbitrability] in either state or federal court." (Southland Corp v. Keating (1984) 465 U.S. 1, 12; Preston v. Ferrer (2008) 552 U.S. 346, 353. See also Muller v. Roy Miller Freight Lines, LLC (2019) 34 Cal.App.5th 1056, 1062 [FAA preempts any state law rule that "'stand[s] as an obstacle to the accomplishment of the FAA's objectives"].)

Defendants argue that the FAA controls the arbitration agreement as the agreement concerns residential leasing, citing

Williams v. 3620 W. 102nd Street, Inc., (2020) 53 Cal.App.5th 1087 (“Williams”); and Brooks v. Greystone Real Estate Partners (2025) 2025 WL 958598 (“Brooks”).

Plaintiff argues that the FAA does not apply as the FAA was not expressly elected, and Defendants are estopped from relying on the FAA as the arbitration agreement expressly states accordance with California law. Plaintiff argues that reliance on Brooks is misplaced as Brooks included an opportunity to opt out whereas Plaintiff did not have that opportunity.

“When it applies, the Federal Arbitration Act (9 U.S.C. § 1 et seq.) preempts state law, but a party seeking to enforce an arbitration agreement has the burden of showing the case affects interstate commerce, which is the prerequisite for the federal act's application. [Citations.]” (Williams, *supra*, 53 Cal.App.5th 1087, 1091 (“Williams”).

Defendants attempt to meet this burden by citing to Williams and Brooks. Brooks is federal authority, unreported, and, therefore, not binding authority. (Cal. Rules of Court, Rule 8.1115(b).) Williams, which is binding on this Court, expressly holds: “Under section 1953, subdivision (a)(4), any lease provision in which a lessee agrees to modify or waive ‘procedural rights in litigation in any action involving his rights and obligations as a tenant’ is void as contrary to public policy.” (Williams, *supra*, 53 Cal.App.5th at 1091.)

Williams also precludes Defendants' reliance on the arbitration addendum to the lease to support its motion to compel arbitration. The Williams Court held:

“The Jaramillo court said tenants and landlords could, however, waive or modify procedural rights in an agreement entirely independent of the rental agreement. (Jaramillo, *supra*, 111 Cal.App.4th at p. 404, 3 Cal.Rptr.3d 525.) The court noted such stand-alone waivers or modifications should be enforceable unless another law barred them. (Ibid.) But tenants could not waive such rights in “a residential lease agreement.” (Ibid.)”

(Id. at 1092 (*italics added*); see also id. at 1093.)

Defendants have not provided any authority

that overcomes this binding precedent.

Thus, the CAA applies and, under California law, where, as here, there is no stand-alone waiver in an agreement entirely independent of the lease agreement by which the lessee agrees to arbitrate habitability issues, the arbitration provision is unenforceable as against public policy.

Accordingly, the Motion to Compel Arbitration is denied.

Conclusion,

Defendants' Motion to Compel Arbitration is denied.

Date: 07/14/2026 _____

William E. Weinberger

Judge, Los Angeles Superior Court